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Daniel Delgado v. Carolyn Francis Delgado

TENTATIVE RULING

Based on the foregoing, Defendant's Motion to Determine Value and Send Buyout Notice is GRANTED IN PART.

Background

Plaintiff Daniel Delgado filed this complaint on February 11th, 2025, against Defendant Carolyn Francis Delgado alleging cause of action for Partition by Sale of Real Property.

On July 9th, 2025, Defendant Carolyn Francis Delgado filed the instant motion to Determine Value and Send Buyout Notice.

On June 24th, 2026, Plaintiff Daniel Delgado filed an opposition.

On June 30th, 2026, Defendant Carolyn Francis Delgado filed a reply.

On September 10th, 2026, both Plaintiff and Defendant submitted supplemental briefings as ordered by the Court.

Legal Standard

Code of Civil Procedure (CCP) § 874.316 states that:

(a) "[e]xcept as otherwise provided in subdivisions (b) and (c), the court shall determine the fair market value of the property by ordering an appraisal pursuant to subdivision (d)."

(d) "If the court orders an appraisal, the court shall appoint a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the property assuming sole ownership of the fee simple estate. On completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court."

(f) "If an appraisal is filed with the court pursuant to subdivision (d), the court shall conduct a hearing to determine the fair market value of the property not sooner than 30 days after a copy of the notice of the appraisal is sent to each party under subdivision (e), whether or not an objection to the appraisal is filed under paragraph (3) of subdivision (e). In addition to the court-ordered appraisal, the court may consider any other evidence of value offered by a party."

(g) "After a hearing under subdivision (f), but before considering the merits of the partition action, the court shall determine the fair market value of the property and send notice to the parties of the value."

(CCP § 874.316, subds. (a), (d), (f), (g).)

"The court shall apportion the costs of partition among the parties in proportion to their interests or make such other apportionment as may be equitable." (CCP § 874.040.)

"If any cotenant requested partition by sale, the court shall, after the determination of value under § 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale." (CCP § 874.317, subd. (a).) "Not later than 45 days after the notice is sent under subdivision (a), any cotenant except a cotenant that requested partition by sale may give notice to the court that it elects to buy all the interests of the cotenants that requested partition by sale." (CCP § 874.317, subd. (b).) "If the court sends notice to the parties under paragraph (1) or (2) of subdivision (d), the court shall set a date, not sooner than 60 days after the date the notice was sent, by which electing cotenants shall pay their apportioned price into the court." (CCP § 874.317, subd. (e).)

"If the court does not order partition in kind under subdivision (a), the court shall order partition by sale pursuant to Section 874.320 or, if no cotenant requested partition by sale, the court shall dismiss the action." (CCP § 874.318, subd. (b).)

Discussion

Defendant moves for an Order to (1) to appoint an appraiser to determine the fair market value of the real property located at 3629 Beck Ave. Bell, CA 90201 (the "Property"), (2) assign the costs of appraisal to Plaintiff and set a deadline for their payment, (3) set a hearing to determine the fair market value, or alternatively to order the Property to be sold, and (4) send a buyout notice with a deadline for compliance under CCP § 872.720, 872.810, 873.010, 874.316, 874.317, 874.318. (Defendant's Mot; Defendant's Memo.)

Defendant argues that this action is subject to the Partition of Real Property Act ("PRPA") because this action was filed after January 1, 2023, the Property is held in tenancy in common, and there is no agreement between the parties which governs the partition. (Defendant's Memo., 3:19-21; Defendant's Mot.)

Defendant requests that the Court appoint an appraiser to conduct an appraisal of the Subject Property pursuant to CCP § 874.316, subd. (d). (CCP § 874.316, subd. (d).) Defendant asks the Court to enter an order appointing Tom Berge to determine the Subject Property's value, and requiring Plaintiff to pay the appraisal's cost. Finally, Defendant requests that in the event Plaintiff fails to pay the Appraiser's fees within 20 days of this hearing or fails to provide the Appraiser with access to the Property within 30 days of this hearing, that the Court order the Property to be sold under CCP § 874.318. (CCP § 874.318.) (Defendant's Memo; Defendant's Reply.)

In opposition, Plaintiff first argues that Defendant improperly names Tom Berge without any reference to his qualifications. Plaintiff also contends that the PRPA does not allow for a party to choose their appraiser and that instead, CCP § 874.316, subd. (d) directs the Court to "appoint a disinterested real estate appraiser..." (CCP § 874.316, subd. (d).) Plaintiff points out that this concern is heightened as Defendant is a "licensed California real estate agent with approximately twenty-two years of experience, with the professional knowledge and industry relationships to identify and engage an appraiser within her own network." (Plaintiff's Opp., 4:25-28) Plaintiff suggests that the Court instead appoint an appraisal management company

("AMC"). Plaintiff also opposes Defendant's request that Plaintiff pay the full costs for an appraisal. Lastly, Plaintiff opposes Defendant's request that the Court order the property to be sold if Plaintiff fails to pay her appraiser within twenty (20) days or provide access within thirty (30) days. (Plaintiff's Opp.)

Defendant replies that she has never argued that an appraiser was mandatory. Moreover, Defendant contends that Plaintiff fails to provide evidence regarding Defendant's alleged bias in suggesting Tom Berge, as required by Evid. Code § 500. (Evid. Code § 500.) Defendant opposes Plaintiff's request to appoint an AMC, because of the additional costs to the parties over a traditional appraiser. Lastly, Defendant opposes Plaintiff's request to strike Defendant's 20/30- day deadline, claiming that Defendant is entitled to request a sale of the Property if the PRPA procedures are not complied with. (Defendant's Mot., Defendant's Memo., Defendant's Reply.)

Under the PRPA, the Court finds that it is appropriate to appoint an appraiser under CCP § 874.316, subd. (a) and (d) (CCP § 874.316, subd. (a), (d)). In its July 8, 2026 order, the Court found that it was unable to appoint an appraiser because the parties' filings lacked relevant evidence, and it ordered supplemental briefing and evidence from both sides: from Plaintiff, evidence regarding (1) the cost of hiring an appraisal management company ("AMC") as opposed to a traditional appraiser, and (2) the allegations of bias concerning Defendant's proposed appraiser, Tom Berge, should Plaintiff wish to oppose his appointment; and from Defendant, evidence regarding Mr. Berge's qualifications to serve as a disinterested appraiser.

The Court continued the hearing to September 21, 2026, and set a September 10, 2026 deadline for the supplemental filings. Both parties timely complied. Plaintiff filed a Supplemental Brief and the Supplemental Declaration of Eric L. Davis, which sets forth all-inclusive cost quotes obtained from each of the three BREAs identified in Plaintiff's opposition — \$600, \$625, and \$640 — and states, based on counsel's approximately thirty years of experience in California real estate practice, that the customary cost of a single-family residential appraisal in the Los Angeles area ranges from approximately \$500 to \$900. (Plaintiff's Supp. Brief; Supp. Davis Decl., ¶¶ 3-4.) That evidence fills the first gap the Court identified and establishes that an AMC-engaged appraisal carries no cost premium over a traditional appraisal. As to the second, Plaintiff states that he has no evidence that Mr. Berge has any personal, professional, or financial relationship with Defendant or her counsel and does not contend that Mr. Berge is biased or unqualified; Plaintiff's remaining objection is directed at the manner of selection under CCP § 874.316, subd. (d), not at Mr. Berge personally. (Supp. Davis Decl., ¶ 5; Plaintiff's Supp. Brief.)

The Court accepts that representation, and the alleged-bias issue is therefore resolved. Defendant filed the Supplemental Declaration of Sebastian Gold, with Exhibits 1 through 3, establishing that Mr. Berge is a California certified residential real estate appraiser (License No. AR040521) based in Alhambra, has been licensed in California for over thirty years and certified since 2006, has been designated a Residential Accredited Appraiser by the National Association of Realtors, adheres to the Uniform Standards of Professional Appraisal Practice, maintains continuing education, practices principally in the Greater Los Angeles area, and has no agreement with any party or attorney of record affecting his duties as an appraiser. (Supp. Gold Decl., ¶¶ 4-9, Exhs. 1-3.) That evidence fills the second gap. The Court finds that the parties' supplemental filings satisfy its July 8, 2026 order and that the record is now sufficient for the Court to appoint a disinterested appraiser under CCP § 874.316, subds. (a) and (d). The Court hereby appoints Mr. Tom Berge as appraiser.

Turning to the cost of the appraisal, Defendant requests that Plaintiff cover the entirety of the cost. In ordering the appraisal, the Court follows CCP § 874.040: "the court shall apportion the costs of partition among the parties in proportion to their interests." (CCP § 874.040.) The Court is not persuaded by Defendant's argument that the appraisal only benefits Plaintiff and that therefore, only Plaintiff should bear the costs. Pursuant to CCP § 874.040. The Court denies Defendant's request and orders that the costs of the appraisal be divided by the parties' respective 50% interests and that it be paid from escrow. (CCP § 874.040.)

Finally, Defendant requested that if the Plaintiff fails to pay the Appraiser's fees within 20 days of this hearing or fails to provide the Appraiser with access to the Property within 30 days of this hearing, that the Court order the Property to be sold under CCP § 874.318. (CCP § 874.318.) Plaintiff raises that nothing in the PRPA authorizes conditioning a cotenant's substantive rights on that cotenant's payment of another party's costs. CCP § 874.316 through 874.318 contain no such penalty. Plaintiff further contends that Defendant's demand is self-defeating because an order selling the Property is the very relief Plaintiff requested in his complaint. Defendant contends that under CCP § 128, subd. (a)(4), the Court has the power to "compel obedience to its judgment, orders, and process..." (CCP § 128, subd. (a)(4).) The Court finds that Defendant's position is premature, as no financial or physical obstruction by Plaintiff has occurred. Defendant can move for a court order

at a later time in the event that Plaintiff fails to comply with his obligations to pay the appraiser or provide the appraiser with physical access to the Property. The Court denies Defendant's requested 20/30-day deadline. (Plaintiff's Opp., Defendant's Mot., Defendant's Memo., Defendant's Reply.)

Accordingly, the Court appoints Mr. Tom Berge as appraiser. The Court also orders that the costs of the appraisal be split by the parties per their respective 50% interests in the Subject Property and paid from escrow. (CCP § 874.040.) Once the appraisal is completed and filed with the Court, the Court will proceed as required under CCP § 874.316, subd. (e), (f), (g). (CCP § 874.316 subd. (e), (f), (g).)

Based on the foregoing, Defendant's Motion to Determine Value and Send Buyout Notice is GRANTED IN PART.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.